

2018 SCC OnLine All 302

In the High Court of Allahabad
(BEFORE AMRESHWAR PRATAP SAHI AND SHASHI KANT, JJ.)

Amrita Arya Petitioner

v.

The Uttar Pradesh Power Corporation Ltd. and 2 Ors.
..... Respondents

Writ - C No. - 12931 of 2018

Decided on April 10, 2018

Counsel for Petitioner:- Bimla Prasad

Counsel for Respondent:- C.S.C., Mahboob Ahmad

ORDER

1. Heard learned counsel for the petitioner.

2. The petitioner is aggrieved on account of the disconnection of her electricity that has arisen out of default in payment of consumption of electricity charges. The petitioner approached the Consumer Redressal Forum by filing a complaint case no. 304 of 2017.

3. During the pendency of the said complaint before the Consumer Redressal Forum recovery certificate has been issued to the petitioner copy whereof is annexure-4 to the writ petition for depositing a sum of Rs. 90,030/-.

4. Against the recovery certificate the petitioner earlier filed Writ C No. 7978 of 2018 the said writ petition was dismissed by the following judgment:

"Heard learned counsel for the petitioner, learned Standing Counsel for the respondent No. 1 to 3 and Sri. Mahboob Ahmad, learned counsel for the respondent No. 4.

Case called out. No one is present on behalf of the petitioner to press this writ petition. However, we have perused the record.

From perusal whereof, we find that for the same grievance raised in this writ petition and the relief to be claimed, the petitioner has already approached before the Adhyaksh Consumer Grievance Redressal, Forum U.P.E.R.C., Allahabad and suit no. 304 of 2017 is pending. Petitioner cannot be permitted to avail two remedies simultaneously for the same cause and relief.

This writ petition is not liable to be entertained and the same is accordingly dismissed."

5. The matter was not being disposed of by the Consumer Redressal Forum therefore the petitioner filed another writ petition being Writ C

No. 10791 of 2018 that was disposed of with a direction that the complaint of the petitioner may be disposed of expeditiously within a period of three months the following is the judgment extracted hereunder:

"Petitioner has approached this Court seeking mandamus to command the respondent no. 2 to take a decision on the complaint case no. 304 of 2017 made by the petitioner within a stipulated time.

Though the petitioner made a complaint with respect to inflated electricity bill as long as back in 2017, the authorities have yet to take a decision thereon. The matter is remain pending till date.

Considering the aforesaid fact, we dispose of the writ petition by directing the respondent no. 2, Chairman Electricity

Dispute Consumer Redressal Forum, Allahabad to decide the complaint case no. 304 of 2017 made by the petitioner, expeditiously, preferably within a period of three months in accordance with law by passing a reasoned and speaking order from the date of production of certified copy of this order."

6. Learned counsel for the petitioner even before the expiry of the said period has now arrived before this Court contending that since the disconnection has been made after the direction issued by this Court therefore the respondent should be directed to accept the amount of recovery from the petitioner and restore the electricity connection of the petitioner.

7. There is nothing in the writ petition whereby the petitioner can be presumed to have waived of his right to contest the claim before the Consumer Redressal Forum. Thus on the one hand if the petitioner is pursuing her remedy before the Forum and is contesting the liability then in that event issuance of a mandamus to this effect would counter the offer of the petitioner made herein. In such circumstances we are not inclined to entertain this writ petition.

8. In the event the petitioner is tendering the amount which is sought to be recovered it will be open to the concerned Executive Engineer to accept the same and pass an appropriate order in accordance with law in terms of U.P. Electricity Supply Code, 2005.

9. Writ petition is consigned to record with the said observations.

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